

1 ENGROSSED SENATE
2 BILL NO. 1164

By: Hall and Haste of the
Senate

3 and

4 Caldwell (Trey) and Kane of
5 the House

6
7 An Act relating to the Department of Mental Health
8 and Substance Abuse Services; amending Section 79 of
9 Enrolled Senate Bill No. 1177 of the 2nd Session of
10 the 60th Oklahoma Legislature, which relates to
11 general appropriations; modifying certain date;
12 making an appropriation; stating purpose; authorizing
certain transfer; requiring that portions of certain
appropriated funds be used for certain purposes;
authorizing request for early transfers of certain
funds for specific purpose; providing an effective
date; and declaring an emergency.

13
14 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

15 SECTION 1. AMENDATORY Section 79 of Enrolled Senate Bill
16 No. 1177 of the 2nd Session of the 60th Oklahoma Legislature, is
17 amended to read as follows:

18 There is hereby appropriated to the Department of Mental Health
19 and Substance Abuse Services from any monies not otherwise
20 appropriated from the Alcoholic Beverage Control Fund of the State
21 Treasury for the fiscal year ending ~~June 30, 2025~~ June 30, 2027, the
22 sum of Twelve Million One Hundred Eighty-five Thousand Six Hundred
23 Fifty Dollars (\$12,185,650.00) or so much thereof as may be
24 necessary to perform the duties imposed upon the Department by law.

1 SECTION 2. There is hereby appropriated to the Department of
2 Mental Health and Substance Abuse Services from any monies not
3 otherwise appropriated from the General Revenue Fund of the State
4 Treasury for the fiscal year ending June 30, 2027, the sum of One
5 Million Two Hundred Thousand Dollars (\$1,200,000.00) or so much
6 thereof as may be necessary to perform the duties imposed upon the
7 Department by law.

8 SECTION 3. From the funds appropriated to the Department of
9 Mental Health and Substance Abuse Services in Enrolled Senate Bill
10 No. 1177 of the 2nd Session of the 60th Oklahoma Legislature and in
11 Section 2 of this act, the Department is authorized to transfer the
12 sum of Five Million Nine Hundred Sixty-nine Thousand Four Hundred
13 Sixty-three Dollars (\$5,969,463.00) to the 9-8-8 Lifeline Revolving
14 Fund, created in Enrolled Senate Bill No. 1369 of the 2nd Session of
15 the 60th Oklahoma Legislature.

16 SECTION 4. From the funds appropriated to the Department of
17 Mental Health and Substance Abuse Services in Enrolled Senate Bill
18 No. 1177 of the 2nd Session of the 60th Oklahoma Legislature, the
19 sum of Three Million Dollars (\$3,000,000.00) shall be used for
20 program growth and to replace funding no longer available due to the
21 reduction of federal matching dollars.

22 SECTION 5. From the funds appropriated to the Department of
23 Mental Health and Substance Abuse Services in Enrolled Senate Bill
24 No. 1177 of the 2nd Session of the 60th Oklahoma Legislature, the

1 sum of Thirty-nine Million Six Hundred Twenty Thousand Nine Hundred
2 Eleven Dollars (\$39,620,911.00) shall be used to meet the
3 obligations required in the consent decree pursuant to case number
4 23-cv-81-GKF-JFJ filed in the United States District Court for the
5 Northern District of Oklahoma.

6 SECTION 6. From the funds appropriated to the Department of
7 Mental Health and Substance Abuse Services in Enrolled Senate Bill
8 No. 1177 of the 2nd Session of the 60th Oklahoma Legislature, the
9 sum of One Million Three Hundred Thousand Dollars (\$1,300,000.00)
10 shall be used to maintain services for veterans and their families.

11 SECTION 7. The Commissioner of Mental Health and Substance
12 Abuse Services may request through the Director of the Office of
13 Management and Enterprise Services the early transfer by the
14 Oklahoma Tax Commission of tax collections to the General Revenue
15 Fund for the purpose of early allocation to the Department of Mental
16 Health and Substance Abuse Services' disbursing funds to alleviate
17 cash flow problems.

18 SECTION 8. This act shall become effective July 1, 2026.

19 SECTION 9. It being immediately necessary for the preservation
20 of the public peace, health, or safety, an emergency is hereby
21 declared to exist, by reason whereof this act shall take effect and
22 be in full force from and after its passage and approval.

1 Passed the Senate the 14th day of April, 2026.

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3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

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8 _____
9 Presiding Officer of the House
10 of Representatives